

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kate Ortigoza	Team: Squad #04	CCRB Case #: 202305105	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 05/27/2023 2:51 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/27/2024	Precinct: 48		
Date/Time CV Reported Sat, 05/27/2023 2:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/06/2023 4:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Clairet Corderolantigua	23864	967018	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO William Defossett	23210	962349	048 PCT
2. PO Michael Rosario	20178	968106	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Clairet Corderolantigua	Abuse: Police Officer Clairet Corderolantigua stopped § 87(2)(b)	§ 87(2)(g), § 87(4-b)
B . PO Clairet Corderolantigua	Abuse: Police Officer Clairet Corderolantigua frisked § 87(2)(b)	§ 87(2)(g), § 87(4-b)
C . PO Clairet Corderolantigua	Abuse: Police Officer Clairet Corderolantigua failed to explain to § 87(2)(b) the reason for a law enforcement activity.	§ 87(2)(g), § 87(4-b)
D . PO Clairet Corderolantigua	Abuse: Police Officer Clairet Corderolantigua failed to provide § 87(2)(b) with a business card.	§ 87(2)(g), § 87(4-b)
E . PO Clairet Corderolantigua	Discourtesy: Police Officer Clairet Corderolantigua spoke discourteously to § 87(2)(b)	§ 87(2)(g), § 87(4-b)
F . PO Clairet Corderolantigua	Off. Language: Police Officer Clairet Corderolantigua made offensive remarks to § 87(2)(b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(g), § 87(4-b)

Case Summary

On May 27, 2023, § 87(2)(b) filed this complaint with the Internal Affairs Bureau via telephone. The complaint was referred to the Civilian Complaint Review Board, via IAB log no. § 87(2)(b) and was received on June 6, 2023.

On May 27, 2023, at approximately 2:51 AM, Police Officer Clairet Corderolantigua, accompanied by Police Officer Michael Rosario and Police Officer William Defossett, all from the 48th Precinct, stopped § 87(2)(b) in front of § 87(2)(b) in the Bronx (**Allegation A: Abuse of Authority: § 87(2)(g)** PO Corderolantigua frisked § 87(2)(b) front hoodie pocket (**Allegation B: Abuse of Authority: § 87(2)(g)** PO Corderolantigua did not explain to § 87(2)(b) why he was stopped (**Allegation C: Abuse of Authority: § 87(2)(g)** PO Corderolantigua allegedly gave § 87(2)(b) a blank business card (**Allegation D: Abuse of Authority: § 87(2)(g)** PO Corderolantigua told § 87(2)(b) he was acting “crazy” and an “EDP” (**Allegation E: Discourtesy: § 87(2)(g)** **Allegation F: Offensive language: § 87(2)(g)** § 87(2)(g), § 87(4-b)

There were no arrests or summonses as a result of this incident.

The investigation obtained Body Worn Camera footage linked to IA #20 (**Board Review 01**) and summarized in IA #30- IA #32 (**Board Review 02-04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Clairet Corderolantigua stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Clairet Corderolantigua frisked § 87(2)(b)

It is undisputed that PO Corderolantigua stopped § 87(2)(b) and frisked § 87(2)(b) front hoodie pocket.

§ 87(2)(b) testified that he was wearing a gray hoodie, with one pocket that stretches across his stomach. § 87(2)(b) had two phones in his front hoodie pocket, which were stacked on top of each other and were about the size of a hand palm (**Board Review 05**). § 87(2)(b) and two friends walked to a store on Webster Avenue and East 188th Street to order food; they exited the store and crossed the street. Officers watched § 87(2)(b) for a few minutes from their vehicle. § 87(2)(b) friends stood on the sidewalk and § 87(2)(b) kept walking. PO Corderolantigua said, “Hey you, stop.” § 87(2)(b) continued walking and reached § 87(2)(b) PO Corderolantigua ran towards him; PO Rosario and PO Defossett ran behind her. PO Corderolantigua asked § 87(2)(b) “What do you have here in your pockets?” PO Corderolantigua pointed to § 87(2)(b) hoodie pocket. § 87(2)(b) reached towards his hoodie pocket. PO Corderolantigua stepped closer to § 87(2)(b) grabbed § 87(2)(b) arm, and said, “Hey, you can’t be doing that.” PO Corderolantigua grabbed § 87(2)(b) hoodie pocket for 3 seconds and felt the phone from the outside. § 87(2)(b) took a few steps back and took out the two phones from the pocket to show the officers.

PO Corderolantigua testified (**Board Review 06**) that she was with PO Rosario and PO Defossett inside their vehicle. PO Defossett was driving, PO Rosario was in the passenger seat, and PO Corderolantigua was sitting behind PO Defossett. The officers were driving southbound on Webster Avenue. The crime conditions in that area usually have shootings, robbery and assault. The vehicle windows were not open. The area was well-lit. PO Corderolantigua observed a vehicle that was double parked northbound and had “heavy” tints and no front license plate. Individuals and § 87(2)(b) exited the vehicle. PO Corderolantigua noticed that § 87(2)(b) had a heavy-weighted

“bulge” with a straight and sharp edge line in his front hoodie pocket that resembled the side of a firearm. The side looked like firearms in arrests she has made in the past. PO Defossett drove at a slow speed to continue to observe § 87(2)(b) made eye contact with the officers while they were driving by and subsequently moved his body away from the officers. Two males who were with § 87(2)(b) also made eye contact with PO Corderolantigua. PO Corderolantigua continued to look at § 87(2)(b) through the back windshield window. § 87(2)(b) was then “completely frozen,” with his body away from the unmarked vehicle, kept looking back from the side, and seemed like he was waiting for the unmarked vehicle to pass by. § 87(2)(b) had a phone in his hand; PO Corderolantigua did not recall which hand. PO Corderolantigua told PO Defossett to make a U-turn to further observe § 87(2)(b). PO Corderolantigua observed § 87(2)(b) for 1-2 minutes. After the U-turn, § 87(2)(b) and his friends walked “fast” and crossed the street to the southbound side. PO Defossett drove on the opposite side of the street due to traffic. § 87(2)(b) walked fast and looked back towards the officers multiple times. One of males was in front of § 87(2)(b). The other male was behind § 87(2)(b) and blocked PO Corderolantigua’s view of § 87(2)(b).

It was PO Corderolantigua’s decision to stop § 87(2)(b) as § 87(2)(b) actions led PO Corderolantigua to suspect that § 87(2)(b) was concealing a firearm. PO Corderolantigua did not suspect § 87(2)(b) of any other offenses. PO Corderolantigua shouted, “Police,” while she was inside the vehicle. The males ignored PO Corderolantigua. The officers exited the vehicle. PO Corderolantigua turned on her BWC. § 87(2)(b) continued walking and PO Corderolantigua said, “Hey you, grey hoodie.” § 87(2)(b) turned back to look at PO Corderolantigua and stopped. PO Corderolantigua attempted to frisk § 87(2)(b). § 87(2)(b) took a few steps back and did not let PO Corderolantigua frisk him. PO Rosario and PO Defossett grabbed § 87(2)(b) arms and held them into the air. PO Corderolantigua frisked § 87(2)(b) front hoodie pocket for a few seconds because she thought he had a firearm. PO Corderolantigua felt a cellphone and stopped frisking § 87(2)(b). § 87(2)(b) also told PO Corderolantigua that it was a phone. PO Rosario and PO Defossett then let go of § 87(2)(b). § 87(2)(b) demeanor was hostile because he was screaming and telling PO Corderolantigua that he was going to sue her.

PO Defossett’s BWC shows PO Corderolantigua walking towards § 87(2)(b). At the 1:00-minute mark, PO Corderolantigua attempts to touch § 87(2)(b) front hoodie pocket and § 87(2)(b) takes a few steps back. At the 1:05-minute mark, § 87(2)(b) front hoodie pocket has a heavy weighted item inside. A straight line can be seen at the bottom of the pocket. There is no “L” shape observed inside of § 87(2)(b) front hoodie pocket and the item inside appears to be rectangular. At 1:07, PO Corderolantigua touches the outside of § 87(2)(b) grey hoodie pocket. PO Rosario lifts § 87(2)(b) wrist upwards. PO Corderolantigua touches § 87(2)(b) front hoodie pocket, and a rectangular shaped item is seen from the outside. PO Corderolantigua says, “It’s another phone.” PO Corderolantigua does not go inside § 87(2)(b) pockets and immediately stops the frisk after feeling the phone.

Stop Report no. § 87(2)(b) prepared by PO Corderolantigua, is consistent with her testimony (**Board Review 07**).

Per People v. De Bour, 40 N.Y.2d 210 (1976), officers may forcibly stop and detain a person when they have a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. Officers may frisk an individual if they reasonably suspect that they are in danger of physical injury by virtue of the individual being armed. De Bour notes that a “pocket bulge” can be caused by “any number of innocuous objects,” while a waistband bulge is “telltale of a weapon.” (**Board Review 08**)

Allegation (D) Abuse of Authority: Police Officer Clairet Corderolantigua failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that he asked all three officers for their business cards. PO Rosario and PO Defossett gave PO Corderolantigua their business cards and PO Corderolantigua gave all of their business cards to § 87(2)(b). § 87(2)(b) took the business cards and did not realize that one of the business cards he received was blank until the officers left. § 87(2)(b) called 911 to make a complaint and was transferred to the IAB. § 87(2)(b) did not recall which officer provided their names and shield numbers on the business cards, but he told the IAB what was mentioned in the cards. The business card with the name and badge number was “scribbled on.”

In § 87(2)(b) phone call with the IAB, § 87(2)(b) states that he received a business card from PO Defossett with shield number 23210 and another business card with a scribbled name of PO Rosario and shield number 20178. § 87(2)(b) received a blank card and did not know who the third officer was. § 87(2)(b) also stated that the officers gave him “no reason” why they stopped him **(Board Review 12)**.

PO Corderolantigua testified that she told § 87(2)(b) that she would give him a business card with all her information on it. PO Corderolantigua wrote down her name and shield number and gave her business card to § 87(2)(b). The business card included the rank, command, name, and shield number. PO Corderolantigua did not have any printed business cards on the day of the incident and wrote all her information down. PO Corderolantigua denied giving § 87(2)(b) a blank business card.

PO Corderolantigua’s BWC shows that at the 1:40-minute mark, PO Corderolantigua tells § 87(2)(b) that she will give him all of her information. At 2:08, PO Rosario asks, “Do you have a blank one I can write in?” PO Corderolantigua takes out a pen. PO Defossett gives PO Rosario a card. PO Rosario is seen using a pen on the blank card. At 2:24, § 87(2)(b) is seen with a card in his hands, but it is unclear when PO Defossett gave it to him. PO Corderolantigua is seen with a pen in her hand moving in a motion. PO Corderolantigua gives § 87(2)(b) the card. At 2:34, PO Rosario gives § 87(2)(b) a card.

NYPD Administrative Guide Procedure 304-11 states that uniformed members of the service are required to offer business cards following stops where they have a reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter and which do not result in a summons or arrest. Members are also to provide business cards, as appropriate, at the request of members of the public. **(Board Review 13)**.

§ 87(2)(g) PO Corderolantigua’s BWC shows PO Corderolantigua using a pen to write on a business card. However, PO Corderolantigua’s BWC does not capture the written information on the business card. § 87(2)(g)

Allegation (E) Discourtesy: Police Officer Clairet Corderolantigua spoke discourteously to § 87(2)(b)

Allegation (F) Offensive Language: Police Officer Clairet Corderolantigua made offensive remarks to § 87(2)(b)

§ 87(2)(b) did not allege that PO Corderolantigua used discourteous or offensive language against him.

Mediation, Civil, and Criminal Histories

- On June 22, 2023, this case was sent to mediation and on July 17, 2023, the case was returned to investigation because § 87(2)(b) was unresponsive to mediation contact attempts.
- As of August 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 4

Investigator:	<u>Kate Ortigoza</u>	<u>INV. Kate Ortigoza</u>	<u>09/06/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>09/06/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date